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File No.: EXP202208406

RESOLUTION FOR TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On August 21, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against WATIUM, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202208406

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) on June 29, 2022, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against WATIUM, S.L. with NIF B86459260 (hereinafter, W.S.L.). The complainant states in their complaint a series of facts regarding the contractual relationship they had with the company Naturgy and how it was affected by the intervention of another entity, Masluz. According to this document, on February 22, 2022, the entity W.S.L., without prior notice or consent from the complainant, terminated the gas supply contract that the latter had with Naturgy, and instead, proceeded to establish a new contract with a different company, Masluz.

The complainant became aware of this action on March 9, 2022, the date on which they received an official communication sent by Naturgy, informing them of the termination of their gas contract. In light of this situation, the affected party decided to withdraw from the contract that had been established with Masluz without their authorization, in order to subsequently re-sign the contract with the supplier Naturgy.

In order to clarify these facts, on April 6, 2022, the complainant requested from Masluz the recording of the granting of consent to the contract that they supposedly accepted, without having received such recording to date. In response, they were sent a contract with that entity where their personal data appears but which lacks both their signature and any other indication of their approval or acceptance. For the purpose of evidencing these facts, the complainant presents the following documentation:

- List of complaints filed with MASLUZ.
- Contract dated February 22, 2022 sent by Masluz without their signature.
- Police report dated March 15, 2022 in which the claimed facts are stated.
- Exchange of follow-up emails regarding the complaints, through the account: ***EMAIL.1.
- Copy of the withdrawal from the contract with MASLUZ.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to W.S.L, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 12/08/2022 as evidenced by the acknowledgment of receipt in the file.

On 12/09/2022, a response letter was received by this Agency from W.S.L indicating the following statements:

- That the procedures for formalizing the energy supply contract at W.S.L require verification and authentication of the client's expression of will to proceed with the signing of the contract. This implies that, when a telemarketing service provider formalizes a supply contract on behalf of W.S.L, it must provide the formalization of the sale, and thus, W.S.L can verify that the contracting has been carried out properly.
- Regarding the origin of the complainant's personal data, it states that the telemarketing service

provider transfers to W.S.L the personal data of interested parties to whom W.S.L's products and services will be offered. Subsequently, the telemarketing service provider acts as a data processor for W.S.L for the purpose of carrying out the activities of offering its products and services and contracting the corresponding products and services. However, the telemarketing service provider can only carry out commercial actions regarding

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those interested who have provided their consent for the transfer of their personal data to W.S.L for that purpose.

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That it cannot determine where the telemarketing service provider obtained the personal data of the Claimant, since it obtained them as an independent data controller from W.S.L. It states that, at the time of signing the telemarketing service contract, said service provider undertook the commitment to transfer only the personal data of those interested who had given their consent for that purpose.

Additionally, the service provider committed to inform the interested parties properly and in accordance with the Data Protection Regulations about the transfer of their data to W.S.L.

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That according to its internal records, the claimant did indeed properly formalize a contract in the fourth quarter of 2021 and that, by mistake, the client was reactivated on February 24, 2022, remaining active as a client of that company during the period from February 24, 2022, to March 9, 2022. They claim that the appropriate actions were taken to rectify it as soon as they became aware of the error,

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That they have no record of the claimant exercising any of the rights regulated in Articles 15 to 22 of the GDPR before the data controller; nor does the Claimant refer to such a fact.

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That following the receipt of the transfer of the complaint and request for information that motivates this document, an internal investigation has been initiated to determine whether there has been any breach of data protection regulations in the organization during the contracting process with the claimant.

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That, since it has been confirmed that the reactivation of the client occurred due to an error, they have proceeded to review the procedures for client reactivation, as well as the clarification of internal responsibilities. Furthermore, it states that it has adopted as a preventive measure the total suspension of the contracting procedure for its services until these issues are resolved.

THIRD: On September 13, 2022, the claimant sent a new document to this Agency stating that the company MASLUZ has sent them the recording of a gas contract with INSIGNIA GAS SL and the verification document. Both are dated June 22, 2021, and therefore correspond to a contract prior to the one that is the subject of this complaint. The mentioned contract was withdrawn by the claimant on June 30, 2021.

For these purposes, the claimant provides the following documentation in this new submission:

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Certificate from a trusted third party for the signing of the contract with INSIGNIA GAS and the signed contract; both dated June 22, 2021.

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Recording of the mentioned contract.

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Email from MASLUZ dated August 25, 2022, which includes the previous attachments.

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Email dated June 30, 2021, regarding the withdrawal of the contract with INSIGNIA GAS.
FOURTH: On September 15, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.
FIFTH: On that same date, the General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with what is established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

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After reviewing the documentation provided by the party in both submissions and examining the response to the transfer from the responding party, the following facts emerge:

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The claimant consented to a gas supply contract with INSIGNIA GAS S.L. dated June 22, 2021.

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This contract was withdrawn by the claimant on June 30, 2021, and accepted by MASLUZ, as stated in the request and emails submitted.

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On February 22, 2022, the contract that would later give rise to the complaint was executed. This contract, promoted by VISALIA under the MASLUZ brand and operated by W.S.L., was sent by MASLUZ on April 6 of that same year.

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A month later, on March 9, 2022, the claimant requested evidence of the mentioned contracting, resulting in an exchange of emails between the involved parties. This thread of communications continued for several days, during which the claimant repeatedly reiterated their request for evidence of the contracting.

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At the same time, on March 9, 2022, the claimant sent an email requesting the withdrawal of the contract with MASLUZ. The following day, MZ responded informing about a penalty for early termination of the contract, due to a 12-month permanence clause from the activation date of the contract on February 22, 2020.
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Under such circumstances, on March 15, the claimant filed a police report, reporting the facts subject to the claim and mentioning the existence of a prior contract dated June 22, 2021.

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On April 6, 2022, MASLUZ made an appearance by sending an email with the contract signed with the claimant on February 22, 2022. This contract does not bear the signature of the contract nor the granting of consent.

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Finally, on August 25, 2022, MASLUZ sent a new email providing the recording of a contract and a certification issued by a trusted third party, both pieces of evidence dated June 22, 2021. The information provided refers to the contract made on June 22, 2021, and not the one requested by the claimant regarding the contract dated February 22, 2022.
From the mentioned documents and the investigative actions carried out, the following involved companies are deduced:

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INSIGNIA: inactive company due to dissolution with which the claimant previously entered into a contract, dated June 22, 2021.

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SIE: inactive company due to dissolution and 49% owned by VISALIA. In the recording of this contract (June 22, 2021), the supply registration with SIE, which operates under the brand MASLUZ, is processed.

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WATIUM: active company whose global parent company is VISALIA. It is the party being claimed in this procedure due to a non-consented contract dated February 22, 2022.

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VISALIA: energy marketer and parent company of WATIUM.

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MASLUZ ENERGÍA: commercial brand used by SIE and WATIUM for their contracts. Communications between the claimant and the claimed party have been conducted through the account: ***EMAIL.2. After various investigative actions and multiple requests to the involved companies, the following statements and evidence have been gathered:

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W.S.L. admits that, by mistake, the claimed party was reactivated on February 24, 2022. The reactivation was carried out regarding the contract dated June 22, 2021, prior to the claimed one, and it was canceled a week later, on June 30, 2021.

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W.S.L. indicates that its verification procedure for contracts begins with checking the recording of calls and acknowledges that the telemarketing service provider did not provide them. It states that, once the non-existence of the recording regarding the contract of February 24, 2022 was verified, it proceeded to cancel any invoices that may have been issued and deregistered the claimant.

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The claimant has confirmed the reimbursement of the receipts by W.S.L.

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MASLUZ sent the information to the claimant with more than five months of delay and it is incorrect: the information provided refers to the contract made on June 22, 2021, while the claimant is requesting evidence of the contract dated February 22, 2022.

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When requested several times for a copy of the data processing agreement between W.S.L. and the telemarketing service provider, W.S.L. has not provided the processing agreement and has explained that, in its activity as a telemarketing service provider, ALPA57 is responsible for the processing, which is why no processing agreement has been signed for this purpose.

SIXTH: According to the report collected from the AXESOR tool, the entity W.S.L. is a medium-sized company established in 2012, with a turnover of €54,581,760 in 2020.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data

Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

The GDPR addresses in its Article 5 the principles governing the processing of personal data, a provision that states:

"1. Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject (<>)

[...]

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Section 2 of this same article also establishes that "The data controller shall be responsible for compliance with the provisions of section 1 and capable of demonstrating it (<>)."

For its part, Article 6 of the GDPR under the heading "Lawfulness of processing" specifies in its section 1 the circumstances under which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) processing is necessary to protect vital interests of the data subject or of another natural person.

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

In the present case, there is no evidence that any of the aforementioned conditions are met to consider the processing of the personal data of the claimant to be lawful.

Such processing consisted, as can be inferred from the investigation proceedings, in entering into an energy supply contract with the claimant without the latter's consent.

This fact is primarily evidenced by the lack of submission, by W.S.L., of the recording of the contract formalized between the latter and the claimant dated February 22, 2022, despite having been requested by this entity on several occasions. In the contract sent to the claimant on that date, which is submitted along with the claim, there is no signature from the claimant or any other manifestation of the granting of their consent to such contracting. As for the recording submitted by the respondent, as stated in the investigation proceedings, it refers to a different contract that predates the one that is the subject of this claim and regarding which the claimant withdrew in the weeks following its signing.

Furthermore, regarding the relationship between the data controller, W.S.L., and the telemarketing service provider responsible for the processing, the party

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The respondent has asserted during the course of the preliminary proceedings that there is no contract

or agreement regarding the processing of personal data.

In this regard, it is worth recalling that the processing of personal data by the data processor must be carried out through a prior contract between the processor and the data controller, as required by Article 28.3 of the GDPR:

“The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, binding the processor to the controller and establishing the subject matter, duration, nature and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller.”

W.S.L. justifies this absence by indicating that, in its activity as a telemarketing service provider, ALPA57 is the data controller, which is why no data processing contract has been signed for this purpose.

However, this assertion contrasts with another repeated on several occasions by the same entity, according to which the telemarketing service provider transferred to W.S.L. the personal data of data subjects to whom W.S.L.'s products and services would be offered, and that subsequently, said telemarketing service provider acted as the data processor for W.S.L. for the offering of its products and services, as well as for the contracting of the same. Furthermore, it was indicated that the telemarketing service provider could only carry out commercial actions on those data subjects who had provided their consent to transfer their personal data to W.S.L. for that purpose.

In this sense, it is important to note that, regardless of the origin of the personal data, the processing of such data by the data processor acting on behalf of the data controller, as occurs in the present case, requires the prior contract or legal act provided for in the aforementioned Article 28.3 of the GDPR.

III

Classification and qualification of the infringement

In accordance with the evidence available in this initiation agreement of the sanctioning procedure and without prejudice to what results from the instruction, it is inferred that W.S.L. has possibly carried out processing of the personal data of the complainant, without any of the legitimate grounds provided for in the aforementioned Article 6 of the GDPR being present.

Such processing has allegedly consisted of the formalization of a contract without the prior consent of the complainant, which resulted in charges being made to the latter and, furthermore, the complainant having to withdraw from said contract to, once again, contract with the previous supplier.

The known facts could constitute an infringement, attributable to the respondent, classified under Article 83.5 of the GDPR, which states:

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“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; [...]

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“b) The processing of personal data without any of the lawful processing conditions established in Article 6 of Regulation (EU) 2016/679.”

Furthermore, as stated in the investigation proceedings and in the absence of documentation that may be presented during the processing of this procedure, it is inferred that there is no prior contract or legal act between it and the telemarketing service provider acting as the data processor, as required by Article 28.3.

Such known facts could constitute an infringement, attributable to the respondent, classified under Article 83.4 of the GDPR, which states:

"Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; [...]"

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a two-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as serious:

"k) Entrusting the processing of data to a third party without the prior formalization of a contract or other written legal act with the content required by Article 28.3 of Regulation (EU) 2016/679."

IV

Proposal for sanction

The corrective powers attributed to this Agency as the supervisory authority are related in Article 58.2 of the GDPR, paragraphs a) to j).

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The provision mentions among them the authority to impose an administrative fine in accordance with Article 83 of the GDPR (Article 58.2.i). Also, the authority to order the data controller to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specific manner and within a specified timeframe (Article 58.2.d).

In this case, without prejudice to the outcome of the investigation, two administrative fines could be imposed on the respondent in accordance with Article 58.2.i) of the GDPR for the alleged infringement of Article 6.1 of the GDPR, and Article 28.3 of the same legal text, respectively.

Article 83 of the GDPR, "General conditions for imposing administrative fines," states in its paragraph 1 that the supervisory authority shall ensure that the imposition of fines for the infringements of this Regulation indicated in paragraphs 4, 5, and 6, complies in each individual case with the principles of effectiveness, proportionality, and deterrence.

The principle of proportionality requires a correlation between the infringement and the sanction, prohibiting unnecessary or excessive measures, so that it must be suitable to achieve the purposes that justify it. Article 83.2 of the GDPR determines the technique to be followed to achieve that adequacy between the sanction and the infringement committed and provides a list of criteria or factors that must be taken into account to calibrate the sanction.

In relation to the facts presented, at this stage of the procedure and without prejudice to the outcome of the investigation, the following factors reflecting a greater unlawfulness of the conduct and/or culpability of the allegedly infringing entity are noted:

Regarding the infringement of Article 6.1 of the GDPR, the following aggravating circumstance is proposed:

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Circumstance of Article 83.2.k) GDPR, in relation to Article 76.2.b) LOPDGDD: "The evident link between the business activity of the respondent and the processing of personal data." The respondent's corporate purpose includes, among others, the marketing of electrical energy. The execution of contracts entered into with consumers in the development of this activity involves the processing of numerous personal data of its clients or even of third parties. The nature of this business activity obliges the data controller to exercise utmost diligence regarding compliance with the obligations imposed by personal data protection regulations, diligence that does not seem to have been present in this case.

Regarding the infringement of Article 28.3 of the GDPR, the following aggravating circumstance is proposed:

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Circumstance of Article 83.2.a) GDPR: "The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties."

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affected and the level of damages and losses they have suffered." The concurrence of this circumstance is derived from its scope, since the alleged fraudulent contracting led the claiming party to expressly withdraw from such contracting and to enter into a new contract with their previous supplier, as well as to make charges to their account that would later be refunded.

No mitigating circumstances are observed.

In accordance with the criteria of Articles 83.1 and 83.2 of the GDPR, taking into account the total annual global turnover of the previous financial year, as well as the concurrence of the aforementioned aggravating circumstances, and without prejudice to the outcome of the investigation, it is estimated that the mentioned infringements could be subject to sanction through the imposition of an administrative fine in the following amounts:

- For the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of 70,000.00 euros
- For the alleged infringement of Article 28 of the GDPR, classified in Article 83.4 of said regulation, an administrative fine of 50,000.00 euros

V

Adoption of measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In particular, this authority proposes the following measures to be adopted by the defendant W.S.L., without prejudice to the outcome of the investigation of this procedure:

- Considering that no formal contract has been provided with the claiming party that proves the legitimacy of the data processing, this entity proposes as a measure to be adopted the periodic verification of the contracts made provided by any telemarketing service provider that conducts contracts on its behalf.
- Regarding the absence of a contract or legal act with the telemarketing service provider, this entity proposes as a measure to be adopted, the formalization of a contract with said entity and with any other processor, in which the content required by Article 28.3 of the GDPR is shown.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open a further administrative sanctioning procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against WATIUM, S.L., with NIF B86459260, for the alleged infringement of Article 28 of the GDPR and Article 6.1 of the GDPR, classified in Article 83.5 of the GDPR and Article 83.4 of the GDPR.

SECOND: TO APPOINT as instructor B.B.B. and, as secretary, C.C.C., indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claiming party and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the actions prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the investigation:

- For the alleged infringement of Article 28 of the GDPR, classified in Article 83.4 of said regulation, an administrative fine of 50,000.00 euros (fifty thousand euros)
- For the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of 70,000.00 euros (seventy thousand euros)

FIFTH: TO NOTIFY this agreement to WATIUM, S.L., with NIF B86459260, granting a hearing period of ten working days for them to submit allegations and present the evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

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In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 96,000.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 96,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 72,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

Furthermore, in order to prevent further violations of the same nature, the acknowledgment of responsibility and the consequent application of the aforementioned reduction will imply the acceptance, where appropriate, of the measures to be adopted as proposed and indicated by this entity in the present agreement.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (96,000.00 euros or 72,000.00 euros), you must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On October 6, 2023, the respondent has proceeded to pay the sanction in the amount of 72,000 euros, utilizing both reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: The Initiation Agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction."

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditional upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202208406, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER WATIUM, S.L. to notify the Agency within one month of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution.

THIRD: TO NOTIFY this resolution to WATIUM, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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